

25TRCV00466 25TRCV00466

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-23

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Case Number: 25TRCV00466 Hearing Date: June 23, 2026 Dept: B

Moving Parties: Plaintiff Mahmood Motlagh

Responding

Party: None

Motion

to Deem Requests for Admissions Admitted

The Court considered the moving papers. No opposition was filed.

RULING

The

motion is GRANTED.

The Court

orders that the truth of any matters specified in plaintiff's requests for

admissions, sets one and two, be deemed admitted against defendant Manuel

Lopez.

Defendant

Manuel Lopez is ordered to pay a monetary sanction to plaintiff in the amount of \$900 within 30 days.

BACKGROUND

On February

11, 2025, plaintiff Mahmood Motlagh filed a complaint against Manuel Lopez for general negligence based on a dog bite incident on February 3, 2024.

On

April 3, 2025, defendant (self-represented) filed an answer.

Trial

is scheduled for November 9, 2026.

LEGAL

AUTHORITY

Under CCP §2033.210, “(a) The party to whom requests for admission have been directed shall respond in writing under oath separately to each request. . . .”

Under CCP §2033.240, “(a) The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections.”

Under CCP

§2033.280, “(b) The requesting party may move for an order that the genuineness

of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010). (c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.”

Under

CCP §2015.5, “Whenever, under any law of this state or under any rule, regulation, order or requirement made pursuant to the law of this state, any matter is required or permitted to be supported, evidenced, established, or proved by the sworn statement, declaration, verification, certificate, oath, or affidavit, in writing of the person making the same (other than a deposition, or an oath of office, or an oath required to be taken before a specified official other than a notary public), such matter may with like force and effect be supported, evidenced, established or proved by the unsworn statement, declaration, verification, or certificate, in writing of such person which

recites that it is certified or declared by him or her to be true under penalty of perjury, is subscribed by him or her, and (1), if executed within this state, states the date and place of execution, or (2), if executed at any place, within or without this state, states the date of execution and that it is so certified or declared under the laws of the State of California. The certification or declaration may be in substantially the following form:

(a) If

executed within this state:

‘I

certify (or declare) under penalty of perjury that the foregoing is true and correct” and specifying date and place and signature.

DISCUSSION

Plaintiff requests that

the Court deem admitted the truth of the matters in plaintiff’s Requests for

Admissions, Sets One and Two, as against defendant Manuel Lopez.

Plaintiff states that plaintiff served requests for

admissions, set one on defendant on March 25, 2025. Responses were due on April 25, 2025. On June 4, 2025, plaintiff’s counsel received

defendant’s purported “responses,” which “consisted of illegible handwritten

notes scrawled in the margins of plaintiff’s discovery documents, without

verification under oath, and without compliance with any of the substantive

requirements" of CCP §§2033.210-2033.220.

On June 27, 2025, plaintiff's counsel sent defendant a detailed meet and

confer letter and demanded verified responses by July 9, 2025. Defendant did not serve responses. On November 12, 2025, plaintiff served

requests for admissions, set two via certified mail. On November 24, plaintiff's counsel received

defendant's purported responses consisting again of "handwritten notes" on the

discovery documents, without verification under oath, and with substantively

deficient responses such as "refer to medical documents," "N/A," and "unknown"

without any statement of reasonable inquiry.

On December 3, plaintiff's counsel sent a second detailed meet and

confer letter, demanding code-compliant, verified responses within ten

days. Plaintiff states also that on

December 12, plaintiff's counsel received a document from defendant purporting

to be "notarized" RFA responses.

Plaintiff disputes that defendant served a proper verification and, in

any event, the substance of the responses remain wholly deficient. To date, plaintiff contends, plaintiff's

counsel has not received code-compliant and verified responses.

There is no opposition.

The Court finds that plaintiff properly served written

discovery and defendant failed to serve verified code-compliant responses. A notarized response is not proper in lieu of

a verification.

Accordingly, the motion is GRANTED.

Sanctions

Under CCP § 2023.030(a), “[t]he court may impose a

monetary sanction ordering that one engaging in the misuse of the discovery

process, or any attorney advising that conduct, or both pay the reasonable

expenses, including attorney’s fees, incurred by anyone as a result of that

conduct. . . . If a monetary sanction is authorized by any provision of this

title, the court shall impose that sanction unless it finds that the one

subject to the sanction acted with substantial justification or that other

circumstances make the imposition of the sanction unjust.” Under CCP § 2023.010, an example of the

misuse of the discovery process is “(d) Failing to respond or to submit to an

authorized method of discovery.”

It is mandatory that the court impose a monetary

sanction on the party or attorney whose failure to serve a timely response to

requests for admission necessitated a motion to deem them admitted. CCP §

2033.280(c).

Cal. Rules of Court, Rule 3.1348(a) states: “The court may award sanctions under the

Discovery Act in favor of a party who files a motion to compel discovery, even

though no opposition to the motion was filed, or opposition to the motion was

withdrawn, or the requested discovery was provided to the moving party after

the motion was filed."

Plaintiff requests \$1,560

(\$450/hr. x 3.5 hrs.). The Court finds

that \$900 (\$450/hr. x 2 hrs.) is a reasonable amount to be imposed against defendant.

ORDER

The

motion is GRANTED.

The

Court orders that the truth of any matters specified in plaintiff's requests

for admissions, sets one and two, be deemed admitted.

The

Court orders that defendant pay a monetary sanction to plaintiff in the amount

of \$900 within 30 days.

Plaintiff is ordered to give notice of this ruling.